

25STCV38510 25STCV38510

County: los-angeles

Division: Civil Law and Motion

Department: 506

Hearing date: 2026-08-03

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Case Number: 25STCV38510 Hearing Date: August 3, 2026 Dept: 506

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE

COUNTY OF LOS ANGELES - CENTRAL DISTRICT

MICHAEL BARCA,

Plaintiff,

vs.

OTRB TENDER GREENS LLC, et al.,

Defendants.

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CASE NO.: 25STCV38510

[TENTATIVE] ORDER GRANTING MOTION TO COMPEL
ARBITRATION

Dept. 506

8:30 a.m.

August 3, 2026

On December 31, 2025, Plaintiff

Michael Barca filed this action against Defendant OTRB Tender Greens LLC and others.

On

May 28, 2026, Defendant filed a motion to compel arbitration.

DISCUSSION

When seeking to compel arbitration

of a plaintiff's claims, the defendant must allege the existence of an agreement

to arbitrate. (Condee v. Longwood Management

Corp. (2001) 88 Cal.App.4th 215, 219.)

The burden then shifts to the plaintiff to prove the falsity of the agreement. (Ibid.) After the Court determines that an agreement to

arbitrate exists, it then considers objections to its enforceability. (Ibid.)

The Court must grant a petition

to compel arbitration unless the defendant has waived the right to compel arbitration

or if there are grounds to revoke the arbitration agreement. (Ibid.; Code Civ. Proc., § 1281.2.) Under California law and the Federal Arbitration

Act, an arbitration agreement may be invalid based upon grounds applicable to any contract, including unconscionability, fraud, duress, and public policy. (Sanchez v. Western Pizza Enterprises, Inc. (2009) 172 Cal.App.4th 154, 165-166.)

A. Defendant Has Shown the Existence of an Arbitration Agreement with a Delegation Clause.

On

November 24, 2025, Plaintiff signed a Mutual Arbitration Agreement. (Molina Decl., Ex. B [“Arbitration Agreement”].) The parties agreed to arbitrate, inter alia,

“claims for wages and other compensation, claims for breach of contract (express or implied), claims for violation of public policy, wrongful termination, tort claims, claims for unlawful discrimination, harassment and retaliation to the extent allowed by law, and claims for violation of any federal, state, or other government law, statute, regulation, or ordinance, but only to the extent such claims arise out of your employment with the Company.” (Arbitration Agreement at p. 1.) Certain claims, such as those pursuant to the Private Attorneys General Act, are expressly excluded—but Plaintiff does not bring any excluded claims here.

Plaintiff

argues that he was pressured to sign an unconscionable agreement. However, Plaintiff’s arguments relate to the Arbitration Agreement’s enforceability, which is an issue delegated to the arbitrator.

Under

California law, for a delegation clause to be effective, the language of the clause must be clear and unmistakable, and the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability. (Aanderud v. Superior Court (2017) 13 Cal.App.5th 880, 892.) An unconscionability challenge must be specifically directed at the delegation provision, not the entire arbitration agreement. (Id. at p. 895.)

In

the Agreement here, “the arbitrator, and not any federal, state, or local court, shall have exclusive authority to resolve any dispute relating to the scope, enforceability, applicability, or interpretation of this Agreement.” (Arbitration Agreement at p. 1.) This is a clear and unmistakable delegation of those issues.

Defendant

has satisfied its burden of showing the existence of an agreement to arbitrate, and that agreement contains a delegation clause.

B. The Court Will Stay the Entire Action.

A

court must grant a motion to compel arbitration unless a party to the arbitration agreement is also a party to a pending court action with a third party arising out of the same transaction and there is a possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2, subd. (c).) If the court does determine that subdivision (c) applies, the court may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding, or may stay arbitration pending the outcome of the court action. (Code Civ. Proc., § 1281.2.)

Plaintiff

brings all causes of action jointly against all Defendants. If the case against other Defendants were to proceed in court while the case against OTRB Tender Greens LLC is arbitrated, there is a possibility of conflicting rulings on a common issue of law or fact. The Court will therefore stay the entire action during the moving Defendant's arbitration.

CONCLUSION

The

motion to compel arbitration is GRANTED.

Plaintiff's claims against Defendant OTRB Tender Greens LLC are ordered to arbitration.

The

entire court action is STAYED pending the conclusion of the arbitration.

A

Status Conference re: Arbitration is scheduled for August 6, 2027 at 8:30 a.m. in Department 506 at Stanley Mosk Courthouse.

Five court days before, the parties are to file a joint report stating the name of their retained arbitrator and the status of arbitration.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 3rd day of August 2026

Hon. Thomas D. Long

Judge of the Superior

Court